Harris County District Court

Cause No. 2024-CV-0023

Warren Fletcher, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	July 23, 2024
Plaintiff's counsel:	Kyle Sanders, Marshall & Dominguez LLP

PARTIES

Plaintiff is Warren Fletcher, an individual who resides in Texas and who was the driver of a passenger vehicle involved in the collision described below. Defendant is the automobile liability insurer that issued the policy under which Plaintiff seeks coverage and benefits. Defendant may be served through its registered agent for service of process in accordance with the Texas Rules of Civil Procedure.

FACTS

On December 27, 2023, Plaintiff was lawfully operating a vehicle in League City while turning left at an intersection. While Plaintiff's vehicle was in the process of completing the turn, a second vehicle traveling in the opposite direction struck the side of Plaintiff's car. The impact caused Plaintiff's vehicle to rotate and strike a roadside barrier. Plaintiff reported the collision to Defendant promptly and submitted the required claim documentation, including a statement describing how the crash occurred. Defendant's adjuster later informed Plaintiff that the claim was under review but has not issued a fair resolution of the claim.

NEGLIGENCE

The driver of the other vehicle failed to yield the right-of-way, failed to keep a proper lookout, and failed to control speed, in violation of the Texas Transportation Code. That neglignece proximately caused the collision and Plaintiff's resulting injuries. Defendant, as the insurer obligated to pay covered benefits under the policy, owed Plaintiff a duty to investigate the claim in good faith, to evaluate it fairly, and to pay amounts due within a reasonable time. Defendant breached those duties by delaying its investigation without reasonable basis, failing to offer a settlement reflecting the clear liability facts, and failing to explain its position in writing as Texas law requires.

DAMAGES

As a direct result of the collision, Plaintiff suffered a fracture of the wrist, requiring medical treatment, immobilization, and ongoing therapy. Plaintiff has incurred medical expenses, lost wages from time away from work, and continuing pain and reduced function in the hand and wrist. Plaintiff seeks recovery of all damages allowed by Texas law, including actual damages, economic losses, and, where applicable, statutory interest and attorney's fees. Plaintiff demands payment in the amount of $68,000.00.